

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

COSCO SHIPPING LINES CO. LTD.

Respondent and Third-Party Complainant,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG SDS GLOBAL SCL ASIA
PACIFIC PTE LTD, AND SAMSUNG ELECTRONICS LOGITECH COMPANY, LIMITED

Third-Party Respondents.

**THIRD-PARTY RESPONDENTS' OPPOSITION TO RESPONDENT'S MOTION FOR
ALTERNATIVE SERVICE**

HOHENSTEIN & PARKINSON, LLP
James H. Hohenstein
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawnyc.com

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd., Samsung SDS
Asia Pacific Pte Ltd. s/h/a Samsung SDS
Global SCL Asia Pacific Pte Ltd and
Samsung Electronics Logitech Co., Ltd. s/h/a
Samsung Electronics Logitech Company,
Limited*

TABLE OF CONTENTS

	Page
TABLE OF AUTHORITIES	ii
PRELIMINARY STATEMENT	1
INTRODUCTION	1
ARGUMENT.....	3
I. Following Hague Convention Procedures Will Place no Burden on the Commission.....	3
II. Other U.S. Litigation involving SEC is of No Relevance.....	3
III. The Hague Convention Applies Here.....	4
IV. Alternative Service is Neither Justified nor Appropriate in this Matter.....	5
CONCLUSION.....	10

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>Ackermann v. Levine</i> , 788 F.2d 830 (2d Cir. 1986)	9
<i>Agrana Fruit US, Inc. v. Ingredienttrade, Inc.</i> , 23 Civ. 10147(ALC)(GS), 2024 WL 773643 (S.D.N.Y. Feb. 26, 2024)	8
<i>Asia Maritime Pacific Chartering Ltd. v. Comercializadora Columbia S.A. de C.V.</i> , No. 22-CV-10789(RA), 2023 WL 372880 (S.D.N.Y. Jan. 23, 2023)	8
<i>Barber v. New Jersey</i> , Civil Action No. 24-3202(ZNQ)(RLS), 2024 WL 4563911 (D.N.J. Oct. 24, 2024)	4
<i>Carrico v. Samsung Electronics Co., Ltd.</i> , Case No. 15-cv-02087-DMR, 2016 WL 2654392 (N.D. Calif. May 10, 2016)	6
<i>Compañía de Inversiones Mercantile, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.</i> , 970 F.3d. 1269 (10 th Cir. 2020)	7
<i>Devi v. Rajapaska</i> , No. 11 Civ. 6634(NRB), 2012 WL 309605 (S.D.N.Y. Jan. 31, 2012), <i>appeal dismissed</i> , No. 12-4081, 2013 WL 3855583 (2d Cir. Jan. 30, 2013)	7
<i>Dolls Kill, Inc. v. Yunye Apparel Retail, Ltd.</i> , Case No. 2:23-cv-01979-HDV-JPR, 2023 WL 6192699 (C.D. Calif. Aug. 16, 2023)	6
<i>Facebook, Inc. v. 9 Xiu Network (Shenzen) Technology</i> , 480 F. Supp. 3d 977 (N.D. Cal. 2020)	5, 9
<i>Federal Trade Commission v. Repair All PC, LLC</i> , Case No. 1:17 CV 869, 2017 WL 2362946 (N.D. Ohio May 31, 2017)	5
<i>Gang Chen v. China Green Agric., Inc.</i> , No. 20 Civ. 9232 (MKV), 2021 WL 103306, at *2 (S.D.N.Y. Jan. 6, 2021), <i>appeal dismissed</i> , No. 22-1952-cv, 2023 WL 8539368 (2d Cir. Dec. 11, 2023)	7, 8

<i>In re: One Apus Container Ship Incident</i> , 22 Md. 3028 (PAE), 2022 WL 17370122 (S.D.N.Y. Dec. 2 2022)	6
<i>KG Marine, LLC v. Vicem Yat Sanayi Ve Ticaret AS</i> , 224 F. Supp. 3d 312 (W.D.N.Y. 2014).....	8
<i>Knox v. Summers</i> , 7 U.S. 496, 3 Cranch 496, 2 L.Ed 510 (1806)	10
<i>Nexxon Korea Corporation v. Ironmace Co., Ltd.</i> , Case No. C23-576-MLP, 2023 WL 3599548 (W.D. Wash. May 23, 2023), <i>aff'd</i> , No. 23-35600, 2024 WL 3493002 (9 th Cir. Jul. 22, 2024).....	7
<i>Noco Company v. CF Group SZKMS Co., Ltd.</i> , 571 F. Supp. 3d 862 (N.D. Ohio 2021)	5, 6
<i>Pacific Chartering Ltd. v. Comercializadora Columbia S.A. de C.V.</i> , No. 22-CV-10789(RA), 2023 WL 372880 (S.D.N.Y. Jan. 23, 2023).....	8
<i>Prem Sales, LLC v. Guangdong Chigo Heating and Ventilation Co., Ltd.</i> , 494 F. Supp 3d 404 (N.D. Texas 2020)	4
<i>Rio Properties, Inc., v. Rio International Interlink</i> , 284 F. 3d 1007 (9 th Cir. 2002).....	7
<i>Samsung Elecs. America, Inc. v. Orient Overseas Container Line, Limited et al.</i> , Dkt. No. 24-17, 2025 WL 516252 (FMC Feb. 13, 2025).....	3
<i>Sec. and Exch. Comm’n v. Richman</i> , Case No. 21-cv-01911-CRB, 2021 WL 9816612 (N.D. Calif. Jul. 19, 2021).....	6
<i>Smart Study Co., Ltd. v. Acuteye US</i> , 620 F. Supp. 3d 1382 (S.D.N.Y. 2022), <i>appeal dismissed</i> , 22-1810-cv, 2023 WL 3220461 (2d. Cir. May 3, 2003).....	4
<i>Stebbins v. Garcia Baz</i> , Case No. 24-cv-00398-LJC, 2024 WL 3447507 (N.D. Calif. Jul. 16, 2024).....	9
<i>Topping v. Deloitte Touche Tohmatsu CPA Ltd.</i> , 14 Civ. 2814(ER), 2014 WL 13118091 (S.D.N.Y. Oct. 3, 2014)	8
<i>Topstone Communications, Inc. v. Chenyi Xu</i> , 603 F. Supp. 3d 493 (S.D. Tex. 2022).....	10
<i>Ultra Int’l Music Publishing, L.L.C. v. Sony Music Enter.</i> , 24 Civ. 9149 (RA)(GS), 2025 WL 670842 (S.D.N.Y. Mar. 3, 2025)	7, 8, 9

<i>Volkswagenwerk Aktiengesellschaft v. Schlunk</i> , 486 U.S. 694 (1988).....	4
<i>Water Splash Inc. v. Menon</i> , 581 U.S. 271 (2017).....	4

Rules and Regulation

Fed. R. Civ. P. 4(f).....	5, 7
Fed. R. Civ. P. 12(b)(5)	10
46 C.F.R. § 502.113	3
46 C.F.R. § 502.69.....	1,10
46 C.F.R. § 502.71	1,10

Treaty

Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638	<i>passim</i>
---	---------------

PRELIMINARY STATEMENT

Third-Party Respondents Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. (“SEC”), Samsung SDS Asia Pacific Pte Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte Ltd (“SDS”), and Samsung Electronics Logitech Co., Ltd. s/h/a Samsung Electronics Logitech Company, Limited (“Logitech”)(SEC, SDS and Logitech collectively “Third-Party Respondents” or “Samsung Respondents”), having specially appeared by their undersigned attorneys for the limited purpose of filing Samsung Respondents’ Motion to Dismiss the Third-Party Complaint of COSCO Shipping Lines Co. Ltd. (“COSCO” or “Respondent”)(Doc. No. 44), respectfully submit this opposition to the Motion for Alternative Service filed by Respondent (Doc. No. 48)(“Alt. Svc. Mem.”).¹

INTRODUCTION

In accordance with 46 C.F.R. § 502.69(g), COSCO’s Motion for Alternative service is a non-dispositive motion. Under 46 C.F.R. § 502.71(a), the parties are to “meet and confer” prior to the filing of a non-dispositive motion and the moving party “must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.” In this case, there was no “meet and confer” as to this motion² and there is no statement concerning the “meet and confer” process in the motion itself. Samsung Respondents defer to the Presiding Officer’s discretion concerning appropriate relief.

¹ By filing this opposition, the Samsung Respondents do not intend to make a general appearance in this matter, nor do the Samsung Respondents intend to waive their Motion to Dismiss (Doc. No. 44) on the grounds of insufficiency of the service of process, which Motion is currently pending before the Presiding Officer.

² Third-Party Respondents submit that the email exchange between counsel (Alt. Svc. Mem. Exhibit B) does not constitute a proper “meet and confer” as COSCO’s counsel did not mention anything about filing this motion. At a minimum, counsel should be admonished for its actions so that the behavior is not repeated.

Turning to the motion itself, COSCO presents no supported argument that the Hague Convention does not apply in this matter. Instead, COSCO merely argues that to require it to follow the law and serve the Third-Party Complaint under the procedures of the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638 (the “Hague Convention”) would be a “burden” on the Commission; there is no merit to this argument. Further, COSCO asserts that as one of the respondents (SEC) has waived the provisions of the Hague Convention in other U.S. litigation, the Hague Convention may be ignored here; this argument is also without merit. As to the precedent cited for the proposition that the various courts have allowed alternative service where otherwise the Hague Convention would apply, as will be presented below, the precedent, when properly considered, provides no legitimate support for the relief sought by COSCO.

COSCO treats the matter of service cavalierly. While formal Hague Convention service is bothersome to COSCO, causing them to seek other means of service, it is important to Third-Party Respondents that formalities be followed here. Third-Party Respondents are being dragged into this United States proceeding, in a venue not of its choosing, on a novel, ultimately unsupportable claim. So COSCO’s feigned claims of hardship fall on deaf ears, especially when it makes no verified representations whatsoever concerning the steps taken for service under the Hague Convention procedures and why they are not viable. It makes no representation because none can be made. COSCO’s own delay in seeking Hague Convention service of process should not serve as a basis for allowing alternative service.

ARGUMENT

I. Following Hague Convention Procedures Will Place no Burden on the Commission.

COSCO argues that following Hague Convention procedures would mean “an excess use of the Commission’s resources that would result from service under the Commission” (Alt. Svc. Mem. at 2).

The typical means of service of complaints are set out in 46 C.F.R. § 502.113(b), i.e., service by the Secretary using first class mail or express mail service.³

However, the relevant and applicable FMC Rule is not incompatible with the service procedures of the Hague Convention, given the terms of 46 C.F.R. § 502.113(c):

Alternative service by Complainant. The Complainant may serve the Complaint at any time after it has been filed with the Commission. If Complainant serves the complaint, an affidavit setting forth the method, time and place of service must be filed within five days following service.

Here, the proper method of service is that required by the Hague Convention. As all the mechanics of this process are to be accomplished by COSCO, the complainant (with no involvement of the Secretary), there will be no “excess use” of the Commission’s resources.

II. Other U.S. Litigation involving SEC is of No Relevance.

COSCO states “[N]otwithstanding Third-Party Respondent SEC’s appearance in scores of actions in the U.S. (*see e.g.*, Decl. of Stacey Normington, Ex. A in *Samsung Elecs. America, Inc. v. Orient Overseas Container Line, Limited et al.*, Dkt. No. 24-17, 2025 WL 516252 at * 2 (FMC Feb. 13, 2025), and the action brought by its subsidiary SEA, the Third-Party Respondents have refused to waiver or accept service.” (Alt. Svc. Mem. at 6).

COSCO presents no reasoned argument or citation for this demand.

³ Samsung Respondents respectfully refer to their Motion to Dismiss (Doc. No. 44) as well as their reply (filed contemporaneously with this submission) to COSCO’s Opposition to that motion (Doc. No. 46) for the details concerning the purported service on SDS and Logitech and the attempted service on SEC.

First, COSCO presents no support that an action initiated by a U.S.-based corporate affiliate provides a basis for COSCO to demand that related foreign-based entities must waive or accept service.

Second, a party's waiver of a right in one matter has absolutely no relevance or impact on that party's exercise of that right in a completely separate matter.

For example, in *Barber v. New Jersey*, Civil Action No. 24-3202(ZNQ)(RLS), 2024 WL 4563911 (D.N.J. Oct. 24, 2024), the plaintiff sought to excuse improper service of process by arguing that service by the same (improper) method had been previously accepted by defendants in other cases. The court disagreed:

Plaintiff argues that in other cases involving the same subject matter, the defendants in those cases accepted service at the nursing homes...Thus, Plaintiff argues that service should be proper at the nursing home in this case. The Court rejects this argument. Plaintiff has provided no authority to support the notion that a different defendant's agreement, or even the same defendant's agreement, to accept service in one matter somehow waives its right to refuse service for another.

Id. at *3 n. 7 (citations omitted).

III. The Hague Convention Applies Here.

The Hague Convention is an international agreement designed to “simplify, standardize, and generally improve the process of serving documents abroad.” *Prem Sales, LLC v. Guangdong Chigo Heating and Ventilation Co., Ltd.*, 494 F. Supp 3d 404, 409 (N.D. Texas 2020)(quoting *Water Splash Inc. v. Menon*, 581 U.S. 271, 273 (2017)).

Use of the Convention procedures, when applicable, is mandatory if documents must be transmitted abroad to effect service. *See Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694, 699 (1988). *See also Smart Study Co., Ltd. v. Acuteye US*, 620 F. Supp. 3d 1382, 1389, 1393 (S.D.N.Y. 2022), *appeal dismissed*, 22-1810-cv, 2023 WL 3220461 (2d. Cir. May 3, 2003)(mandatory compliance with the Hague Convention means no email service on a defendant

located in China); *Noco Company v. CF Group SZKMS Co., Ltd.*, 571 F. Supp. 3d 862, 867 (N.D. Ohio 2021)(Hague Convention compliance mandatory but its terms do not apply where the address of the person to be served is unknown); *Facebook, Inc. v. 9 Xiu Network (Shenzhen) Technology*, 480 F. Supp. 3d 977, 983 (N.D. Cal. 2020)(“The Convention, however, doesn’t simply offer options for service abroad – options that plaintiffs can resort to or not at their discretion. Rather, unless an exception applies, the Convention-delineated methods of service...are exclusive.”).

By its unverified, belated initiation of some form of service under the Hague Convention procedures COSCO has implicitly acknowledged the Hague Convention applies to the service of the Third-Party Complaint. As such, that should end the matter and service should be effectuated in due course under the Hague Convention.

IV. Alternative Service is Neither Justified nor Appropriate in this Matter.

COSCO states, without providing any declaration of verified details whatsoever (Alt. Svc. Mem. at 2) that it has initiated Hague Convention service.⁴ There is no indication that such service will fail. Thus, there is no need to allow alternative methods of service such as by serving undersigned counsel who is not, in any event, authorized to accept such service (as confirmed in the exchange of email attached as Exhibit B to the Alt. Svc. Mem.).

COSCO cites numerous cases for the proposition that a Court may order alternative service under Fed. R. Civ. P. 4(f)(3) and that the decision on the issue is within the discretion of the court (or here the Presiding Officer). However, prior to ordering alternative service, a district court may “require parties to show that they have reasonably attempted to effectuate service on the defendant and that the circumstances are such that the district court’s intervention is necessary.” *Federal*

⁴ At no time has COSCO’s counsel contacted Samsung Respondents’ counsel with a proposal that the Samsung Motion to Dismiss be withdrawn on the basis that COSCO has initiated Hague Convention service.

Trade Commission v. Repair All PC, LLC, Case No. 1:17 CV 869, 2017 WL 2362946, * 3 (N.D. Ohio May 31, 2017).

Typically, where the Hague Convention applies, alternative service is allowed only under *extraordinary circumstances*. For example, in *Dolls Kill, Inc. v. Yunye Apparel Retail, Ltd.*, Case No. 2:23-cv-01979-HDV-JPR, 2023 WL 6192699, *1 (C.D. Calif. Aug. 16, 2023), e-mail service on a Chinese defendant was allowed (China is a party to the Hague Convention and has lodged objections similar to those in Korea and Singapore). However, the motion for alternative service was granted based on an *ex parte* application which indicated that the only information the plaintiff had about the location of the defendant was an email address. Moreover, the plaintiff alleged there was a certain urgency in this copyright infringement matter arising from the possible running of the statute of limitations.⁵ Under the Hague Convention, where the physical address of a defendant cannot be ascertained, by its terms the Hague Convention does not apply. *See Noco Company*, 571 F. Supp. 3d at 867 (“[T]he Convention does not apply where the address of the person to be served is unknown.”). None of the elements leading to the decision in *Dolls Kill* apply here.

Other examples of extraordinary circumstances include *In re: One Apus Container Ship Incident*, 22 Md. 3028 (PAE), 2022 WL 17370122, *1 and 4 (S.D.N.Y. Dec. 2 2022)(unopposed motion for alternative service granted in multi-district litigation involving defendants in Japan, Panama, South Korea and Singapore); *Carrico v. Samsung Electronics Co., Ltd.*, Case No. 15-cv-02087-DMR, 2016 WL 265392, *2 (N.D. Calif. May 10, 2016) (as several attempts by Korean authorities to serve (pursuant to the Hague Convention) an individual defendant were unsuccessful, alternative service allowed);⁶ *Sec. and Exch. Comm’n v. Richman*, Case No. 21-cv-01911-CRB,

⁵ Copies of the *ex parte* application and supporting affidavit are attached as Appendix A. The reference to the running of the statute of limitations appears at page 6 of the application.

⁶ SEC was in fact a defendant in this litigation: as noted by the court: “Plaintiffs successfully served SEC through the Hague Convention procedures...” *Id.* at 2.

2021 WL 9816612, *2 and 6 (N.D. Calif. Jul. 19, 2021)(as Hague Convention service was unsuccessful, alternative service allowed); *Compañía de Inversiones Mercantile, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.* 970 F.3d. 1269, 1294-95 (10th Cir. 2020)(affirming the district courts approval of “service on the [defendant]’s American counsel because the Mexican central authority did not or would not serve [the defendant], despite a well-known headquarters address.”); *Rio Properties, Inc., v. Rio International Interlink*, 284 F. 3d 1007, 1015 n.4 (9th Cir. 2002)(“A federal court would be prohibited from issuing a Rule 4(f)(3) order in contravention of an international agreement, including the Hague Convention referenced in Rule 4(f)(1). The parties agree, however, that the Hague Convention does not apply in this case because Costa Rica is not a signatory); *Nexxon Korea Corporation v. Ironmace Co., Ltd.*, Case No. C23-576-MLP, 2023 WL 3599548, *1-3 (W.D. Wash. May 23, 2023), *aff’d*, No. 23-35600, 2024 WL 3493002 (9th Cir. Jul. 22, 2024)(although Hague Convention service on individual defendants in Korea had been initiated, plaintiff demonstrated sufficient urgency of imminent copyright violation to justify service by alternative means). No such exceptional circumstances pertain in this matter.

A court may generally impose “two...threshold requirements before authorizing alternative service under Rule 4(f)(3): (1) a showing that the plaintiff has reasonably attempted to effectuate service on the defendant, and (2) a showing that the circumstances are such that the court’s intervention is necessary’...‘Effectively, this rule requires the moving party first to follow – or attempt to follow – international agreements and law in recognition of principles of comity and not to whimsically seek an alternative means of service.’” *Ultra Int’l Music Publishing, L.L.C. v. Sony Music Enter.*, 24 Civ. 9149 (RA)(GS), 2025 WL 670842 (S.D.N.Y. Mar. 3, 2025)(quoting *Devi v. Rajapaska*, No. 11 Civ. 6634(NRB), 2012 WL 309605, *1 (S.D.N.Y. Jan. 31, 2012), *appeal dismissed*, No. 12-4081, 2013 WL 3855583 (2d Cir. Jan. 30, 2013) and *Gang Chen v. China*

Green Agric., Inc., No. 20 Civ. 9232 (MKV), 2021 WL 103306, at *2 (S.D.N.Y. Jan. 6, 2021), *appeal dismissed*, No. 22-1952-cv, 2023 WL 8539368 (2d Cir. Dec. 11, 2023)).

COSCO argues that it should not be held to these requirements and that it should be allowed to use alternative service so as to “permit service to be made expeditiously and avoid the multi-month delays and excess use of the Commission’s resources that would result from service under the Convention.” (Alt. Svc. Mem. at 2). First, any delay would be wholly caused by COSCO’s own inaction; that should not form the basis of forcing some expedited relief. And the concern of resource usage (exclusively by COSCO) is an insufficient basis for a grant of alternative service:

Reduced to its essence, Plaintiffs’ justification for why they should not have to serve through the Hague Convention is that it would be ‘wasteful, expensive, and time-consuming’ and delay progress of their suit...But courts have consistently held that this is not a sufficient justification for alternative service where the plaintiff has not first reasonably attempted to effect service through traditional means. *See, e.g., Agrana Fruit [US, Inc. v. Ingredientrade, Inc.]*, 23 Civ. 10147(ALC)(GS)], 2024 WL 773643, at *3 [(S.D.N.Y. Feb. 26, 2024)](finding alternative service unjustified based on claim that service through traditional means “would be time-consuming and cumbersome,” something “which could be said, to a greater or lesser degree, about service on any foreign defendant”); *Asia Maritime [Pacific Chartering Ltd. v. Comercializadora Columbia S.A. de C.V.]*, No. 22-CV-10789(RA)], 2023 WL 372880, at *2 [(S.D.N.Y. Jan. 23, 2023)](“While the Court recognizes that service on foreign respondents [through the Hague Convention] may take time, Petitioner’s ‘desire to move quickly’ is not a basis to circumvent procedural rules.”); *Topping[v. Deloitte Touche Tohmatsu CPA Ltd.]*, 14 Civ. 2814(ER)], 2014 WL 13118091, at *4 [(S.D.N.Y. Oct. 3, 2014)](“As for Plaintiffs’ claims that service in China is ‘difficult and time-consuming,’ the Court finds such arguments unavailing[.]”) (citation omitted); *KG Marine, LLC v. Vicem Yat Sanayi Ve Ticaret AS*, 24 F. Supp. 3d 312, 315 (W.D.N.Y. 2014) (denying motion for alternative service where “Plaintiff does not offer any reason explaining why it is in need of alternate means” except that service under the Hague Convention “is very costly and time consuming”)).

Ultra Int’l Music at *6. The court also noted that the fourteen foreign defendants in the litigation “appear to be established corporate entities located in jurisdictions with well-functioning legal systems. Plaintiffs do not contend that they have had, or would have any difficulty...in securing

the cooperation of the foreign countries in effecting service.” *Id.* at *5. The holding in *Ultra Int’l Music* should apply in this matter.

There is no legitimate reason to order alternative service in this matter. It has been merely a matter of weeks since COSCO filed its Third-Party Complaint against Third-Party Respondents (May 13, 2025: Doc. No. 31) and (presumably) a matter of even less time since it initiated service under the Convention. The Third-Party Respondents are well-established corporations in their respective countries, with physical locations which can be located and having appropriate corporate personnel to serve. Nor is there any reason to believe either Korea or Singapore will reject service, or that the time to complete service will be excessive or result in undue cost. Ordering alternative service would fly in the face of the mandatory nature of the Hague Convention and would do nothing more than allow a complainant to ignore its requirements for no good reason. “The Convention is a ratified, self-executing treaty and as such, is ‘the supreme law of the land.’” *Facebook*, 480 F. Supp. 3d at 985 (quoting *Ackermann v. Levine*, 788 F.2d 830, 838 (2d Cir. 1986)). There are times when the Convention-delineated methods of service can be bypassed but: “These exceptions, however, are not limitless. They are either expressly identified in the Convention or they arise when the receiving country doesn’t comply with the Convention. The exceptions, then, don’t mean that the court and the plaintiff can regularly circumvent 4(f)(1). That interpretation would render the Convention optional, which the Advisory Committee’s notes make clear is not the case.” *Id.* at 986. *See also Stebbins v. Garcia Baz*, Case No. 24-cv-00398-LJC, 2024 WL 3447507, *4 (N.D. Calif. Jul. 16, 2024)(following *Facebook*, no Hague Convention exceptions asserted; service must be executed under the Hague Convention).

Because COSCO is not entitled to alternative service, there is no reason to discuss whether such alternative service can be accomplished by serving outside counsel who is not authorized to

accept service and where that attorney has limited the appearance to asserting the Fed. R. Civ. P. 12(b)(5) affirmative defense. The shield of that special appearance should not be made a sword to deprive Third-Party Respondents of their right to proper service.⁷

CONCLUSION

For the reasons stated above, COSCO's Motion for Alternative Service must be denied.

Accordingly, in accordance with 46 C.F.R. §§ 502.69 and 502.71, Third-Party Respondents SEC, SDS and Logitech respectfully move for an Order:

1. Denying COSCO's motion herein; and,
2. Granting SEC, SDS and Logitech all such other and further relief as may be just and proper.

Dated: June 30, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein
James H. Hohenstein
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawnyc.com

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd., Samsung SDS
Asia Pacific Pte Ltd. s/h/a Samsung SDS
Global SCL Asia Pacific Pte Ltd and
Samsung Electronics Logitech Co., Ltd. s/h/a
Samsung Electronics Logitech Company,
Limited*

⁷ "[I]t is axiomatic that only a general appearance by defendants results in a waiver of defect in the manner of service." *Topstone Communications, Inc. v. Chenyi Xu*, 603 F. Supp. 3d 493, 498 (S.D. Tex. 2022)(citing *Knox v. Summers*, 7 U.S. 496, 497, 3 Cranch 496, 2 L.Ed 510 (1806)).

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Linda S. Harris Crovella – *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Holland & Knight LLP
Counsel for Complainant
 - a. Christopher R. Nolan
chris.nolan@hklaw.com
 - b. Gerald A. Morrissey III
gerald.morrissey@hklaw.com
 - c. Kristine O. Little
kristine.little@hklaw.com
 - d. Allison N. Skopec
allison.skopec@hklaw.com
4. Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondent and Third-Party Complainant
 - a. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - b. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - c. Kaya Massey
KMasse@JeffreyFenneman.com
 - d. Nicholas Webb
NWebb@JeffreyFenneman.com
5. Nixon Peabody LLP
Counsel for Respondent and Third-Party Complainant
 - a. Brian J. Whittaker
bwhittaker@nixonpeabody.com
 - b. Gordon L. Lang
glang@nixonpeabody.com
 - c. Martha A. Medina
mmedina@nixonpeabody.com

Dated: June 30, 2025

By: /s/ James H. Hohenstein

James H. Hohenstein
Hohenstein & Parkinson, LLP

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd., Samsung SDS
Asia Pacific Pte Ltd. s/h/a Samsung SDS
Global SCL Asia Pacific Pte Ltd and
Samsung Electronics Logitech Co., Ltd. s/h/a
Samsung Electronics Logitech Company,
Limited*